

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUPP054261: LUCY T DUNCAN vs TODD LARSEN, et al.

07/15/2026 in Department 21

Demurrer to Second Amended Complaint

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendants Dignity Health dba St. John’s Regional Medical Center and Dignity Health dba St. John’s Hospital Camarillo’s Demurrer to Plaintiff’s Second Amended Complaint (*Opposed*)

Tentative Ruling:

The demurrer of St. John’s Hospital Camarillo to the First and Third Causes of Action is **OVERRULED**.

The demurrer of St. John’s Regional Medical Center to the First and Third Causes of Action is **SUSTAINED** with leave to amend.

Plaintiff may file a Third Amended Complaint limited to curing the allegations against SJRMC within 15 days.

Discussion:

Preliminarily, Defendants’ notice cites CCP §§ 430.10(e) and 430.10(f), but the demurrer itself asserts only failure to state sufficient facts under CCP § 430.10(e). The Court therefore does not consider uncertainty as a separate ground.

The meet-and-confer showing establishes only written correspondence and does not demonstrate full compliance with CCP § 430.41. An inadequate meet-and-confer process, however, is not grounds to sustain or overrule the demurrer. (CCP § 430.41(a)(4); *Dumas v. Los Angeles County Board of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

A. First Cause of Action: Medical Battery

1. The demurrer is OVERRULED as to SJHC.

Plaintiff alleges that she initially consented to the ketamine infusion but thereafter expressly and repeatedly withdrew consent, communicated that withdrawal directly to Dr. Larsen and emergency-department staff, and asked that the infusion and IV be removed. She allegedly repeated those requests over approximately three minutes, but the infusion continued for approximately five minutes after her first request. (SAC, ¶¶ 37-45, 62-72.)

Taken as true, these allegations permit a reasonable inference that treatment was knowingly continued after consent had been withdrawn. Whether the delay resulted from medical judgment, operational necessity, or safety concerns presents a factual issue not properly resolved on demurrer. The SAC also adequately alleges that Dr. Larsen and hospital personnel acted within the course and scope of their hospital-authorized duties. (SAC, ¶¶ 13-17, 41, 66, 74.)

2. The demurrer is SUSTAINED as to SJRMC, with leave to amend.

Plaintiff affirmatively alleges that she left SJRMC without receiving treatment and that the infusion occurred at SJHC. The generalized ownership and agency allegations, together with Dr. Larsen's reference to his "other hospital," do not sufficiently connect SJRMC to the alleged continuation of the infusion.

B. Third Cause of Action: Intentional Infliction of Emotional Distress

1. The demurrer is OVERRULED as to SJHC.

Plaintiff alleges that, while distressed and dependent on emergency personnel to control an active intravenous infusion, she repeatedly pleaded for the infusion to stop and the IV to be removed, but the infusion continued for approximately five minutes after her first request. (SAC, ¶¶ 37-45, 65-69, 91-94.) At the pleading stage, these allegations could support findings of extreme and outrageous conduct and reckless disregard of the probability of causing emotional distress.

Plaintiff also sufficiently alleges severe distress and causation, including chronic post-traumatic stress disorder, panic disorder, generalized anxiety disorder, continuing psychological and speech therapy, increased medication, and impaired daily functioning. (SAC, ¶¶ 51-59, 95-110.) Corporate authorization or ratification need not be alleged to establish ordinary respondeat-superior liability; those requirements principally concern punitive damages, which Plaintiff seeks only against Dr. Larsen.

2. The demurrer is SUSTAINED as to SJRMC, with leave to amend.

The demurrer is SUSTAINED as to SJRMC, with leave to amend, because the SAC does not adequately allege that SJRMC participated in or was legally responsible for the treatment occurring at SJHC. Plaintiff may file a Third Amended Complaint limited to curing the allegations against SJRMC within 15 days.